

22STCV172999 22STCV172999

County: los-angeles

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Case Number: 22STCV172999 Hearing Date: September 18, 2026 Dept: B

Tentative Ruling

Shakibian v. AJR Investment, Case
no. 22STCV17299

Hearing date September 18, 2026

Defendant

Shakibian's Motions to Compel Discovery and Deem RFAs Admitted & Sanctions
- UNOPPOSED

Plaintiff

Shakibian sues defendants AJR Investment Partnership, LP, AJR Investment Partnership, LLC (collectively "AJR") and others for premises liability. Defendant moves to compel discovery as to supplemental RFPs, set one, supplemental interrogatories, set one, and to deem RFAs, set one, admitted. The motions are unopposed.

"If

a party to whom interrogatories are directed fails to serve a timely response, the following rules apply... (b) The party propounding the interrogatories may move for an order compelling response to the interrogatories." Code Civ. Proc. §2030.290. If a party to whom requests for admission are directed fails to serve a timely response, propounding party may move to deem the matters admitted. Code Civ. Proc. §2033.280(2)(b).

Defendant

served supplemental RFPs and interrogatories on 4/6/26 and received no

responses by the deadline. Decl. Meyering, exh. A, para. 6. Defense counsel Meyering attempted to meet and confer with plaintiff's counsel Janfaza multiple times via email prior to filing these motions; plaintiff's counsel failed to respond. Id. at paras. 4-5, exhs. B-C. The motions are unopposed. An order compelling code-compliant discovery responses, without objection, is warranted. The meet and confer efforts are sufficient.

Defendant

served RFAs, set one, on 5/5/26. Decl. Meyering, para. 5, exh. A. The parties agreed to multiple deadline extensions, with responses due 7/15/26. Id. at para. 6. Plaintiff failed to serve verified responses by the deadline. Following meet and confer efforts, plaintiff's counsel represented verified responses without objection would be served by 8/3/26 but failed to served verified responses. Id. at para. 7. The motion is unopposed. An order deeming RFAs admitted is granted.

Sanctions

are mandatory under Code Civ. Proc. §2033.280(c). Defendant requests joint and several sanctions against plaintiff and counsel Janfaza. As counsel failed to respond to multiple meet and confer efforts and failed to oppose these motions or offer explanation for the failures, joint and several sanctions are appropriate.

Defendant

requests sanctions of \$420 on the motion to compel supplemental RFPs. Decl. Meyering, para. 7. Defendant requests a reasonable hourly rate of \$120/hour. Id. Defendant requests 1 hour for motion drafting and 2 hours for hearing, plus \$60 in filing fees. Id. As all motions will be heard together, the court awards 1 hour for motion drafting and 1 hour for hearing, plus the requested \$60 in filing fees.

Defendant

requests sanctions of \$420 on the motion to compel supplemental interrogatories. Decl. Meyering, para. 7. Defendant requests 1 hour for motion drafting and 2 hours for hearing, plus \$60 in filing fees. Id. As all motions will be heard together, the court will not award additional hours for hearing. The court awards 1 hour at \$120/hour for motion drafting and the requested \$60 in filing fees.

Defendant

requests sanctions of \$585 on the motion to deem RFAs admitted. Decl. Meyering,

para. 12. Defendant requests a rate of \$185/hour. Id. No explanation is offered for the different rate sought; the court awards the rate of \$120/hour. Defendant requests 1 hour for motion drafting and 2 hours for hearing, plus \$60 in filing fees. Id. As all motions will be heard together, the court will not award additional hours for hearing. The court awards 1 hour for motion drafting at \$120/hour and the requested \$60 in filing fees.

In total, the court awards 3 hours for motion drafting and 1 hour for hearing, all at \$120/hour, totaling \$480, plus \$180 in filing fees. GRANTED; code-compliant responses without objections within 30 days. Defendant's RFAs, set one, are deemed admitted. Joint and several sanctions of \$660 payable by plaintiff and counsel within 30 days.